

IN THE LAHORE HIGH COURT, MULTAN BENCH
MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.5742 of 2015

Dr. Pir Bakhsh Khan deceased through LRs.
VS
The Province of Punjab etc.

JUDGMENT

Date of Hearing:-	16.09.2025.
Petitioners by:-	Sh. Usman Ali, Advocate.
Respondents by:-	Kunwar Sajid Ali, Assistant Advocate General Punjab.

CH. MUHAMMAD IQBAL, J:- Through this Writ Petition, the petitioners have challenged the legality of order dated 22.12.2014, passed by the Member (Judicial-V), Board of Revenue /Chief Settlement Commissioner/Administrator (Residual Properties)/Notified Officer, Punjab who rejected the application of the petitioners for the purchase of the evacuee land.

2. Brief facts of the case as contended by the learned counsel for the petitioners are that agricultural land measuring 93-Kanals 04-Marlas situated in Basti Malana Tehsil Kot Chutta, District Dera Ghazi Khan was allotted in favour of Khursheed Ahmad son of Jalal Din. The said allotment was cancelled vide order dated 31.05.1979. The said order was assailed through Writ Petition Nos.866-R/1979, 299-R/1980, 28-R/1981, 29-R/1981 and 29-R/1989 before this Court which were decided vide order dated 10.04.1993 and order dated 31.05.1979 was

modified and the allotments procured by the said allottee in District Dera Ghazi Khan were declared as null and void and cancelled. Order dated 10.04.1993 of this Court was challenged through Civil Petition Nos.850-L to 854-L of 1993 which were dismissed by the Hon'ble Supreme Court of Pakistan vide order dated 20.12.1994.

After conclusivity of above litigation present petitioners filed an application for the purchase of the evacuee land measuring 93-Kanals 04-Marlas under Section 3 of the Evacuee Properties and Displaced Persons Laws (Repeal) Act, 1975 which was dismissed vide order dated 22.12.2014 by the Member (Judicial-V), Board of Revenue /Chief Settlement Commissioner/ Administrator (Residual Properties)/ Notified Officer, Punjab who passed direction that the said property be disposed of through unrestricted public auction. Hence, this Writ Petition.

3. Arguments heard. Record perused.

4. Admittedly, the petitioners do not hold any valid right qua the suit land measuring 93-Kanals 04-Marlas and have illegal possession of the said land. Petitioners claim that they purchased land from the original allottee and hold possession of the land but the said allotment of original allottee was declared as bogus upto the Hon'ble Supreme Court of Pakistan.

5. As regard this claim of the petitioners that they are bona fide subsequent purchasers of the property and have

protection under Section 41 of Transfer of Property Act, 1882, suffice it to say that admittedly, the petitioners are subsequent purchasers of the evacuee property from Khurshid Ahmed etc., whose allotment was cancelled and his title was completely extinguished, thus the subsequent vendees have to soar and sink with their vendors and they are debarred to claim any better title. Reliance can be placed on the cases titled as Muhammad Yamin and others Vs. Settlement Commissioner and others (1976 SCMR 489), Province of the Punjab through Collector, Sheikhpura & Others Vs. Syed Ghazanfar Ali Shah & Others (2017 SCMR 172) and Abdul Hamid Vs. M.B.R. and others (1994 CLC 1160).

6. Further, admittedly, cancellation of the allotment of Khursheed Ahmad remained upheld upto the level of the Hon'ble Apex Court of the country and thereafter the petitioner who claimed to be vendee of the said land from said Khursheed Ahmad, applied to the authorities to purchase the said land whereas the superior Courts of this country have consecutively observed that the evacuee property, either urban or agricultural, can only be disposed of by the authorities through unrestricted open public auction. A learned Division Bench of this Court has resolved this issue in its judgment cited as Malik Allah Ditta and others Vs. Member, Board of Revenue/(Judicial-V)/ Chief Settlement Commissioner /

Notified Officer, Punjab, Lahore and another (2022 CLC 414 DB) wherein it is held that the Notified Officer / Chief Settlement Commissioner has no jurisdiction to alienate the evacuee land through any private treaty and most applaudable and exclusive mode for disposal of the state assets is to put such property to unrestricted transparent open public auction. The relevant portion of the judgment (supra) is as under:-

“6. Now adverting to the second question i.e. **whether the Notified Officer has the jurisdiction to sell the evacuee land through private treaty**”. Admittedly after the repeal of evacuee laws with effect from 01.07.1974 by promulgation of Evacuee Property and Displaced Persons Laws (Repeal) Act, 1975 all the evacuee land under Section 3 of the Act ibid by operation of law stood vest with the provincial government against the paid consideration thus the said land has attained the status of public property and its disposal has to be made as prescribed under the law, scheme policy on the subject and it is settled that when law requires a thing/act to be done in a particular manner that must be done according to the described modus operandi otherwise it wears no sanctity, effectiveness in the eyes of law. Admittedly the jurisdiction of the Notified Officer has been restricted to the pending proceedings as envisaged under Section 2 of the Act, 1975 and he has no unlimited power rather he had to exercise its jurisdiction with the precincts prescribed under the law regulations, rules, policies and instructions on the subject. Any unwarranted act of a state functionary is liable to be set at naught without any hesitation. Undoubtedly the public functionaries are the ostensible custodians of the state assets and they cannot be allowed to dole the state assets upon their cherished / blue eyed persons at their own whims and fancies. Undeniably the sacred public assets can only be disposed of in extraordinary transparent manner by leaving nil space for doubts and in this regard the most transparent and suitable modus operandi which better serves the public cause is putting such disposable property to unrestricted public auction in order to fetch befitting better price. The object of the above mode is to eliminate the nefarious elements of favoritism, nepotism and the corrupt practices as well as to provide a fair equitable opportunity to every citizen of Pakistan to take

advantage from public assets / opportunities and to improve his financial and social status. The Hon'ble Supreme Court of Pakistan in a case titled as Muhammad Ramzan & Others Vs. Member (Revenue) Chief Settlement Commissioner & Others (1997 SCMR 1635) while deciding the mode of disposal of available evacuee properties, held that “... *it should be disposed of through unrestricted public auction*”. The above celebrated principal has been reiterated in case cited as American International School System Vs. Mian Muhammad Ramzan & Others (2015 SCMR 1449) wherein the Hon'ble Supreme Court of Pakistan has manifestly settled the procedure for disposal of the state assets through transparent, unrestricted open public auction. Against the above dictum [2015 SCMR 1449], the so-called allottees / subsequent purchasers or encroachers/ illegal occupants filed four Review Applications [Nos. C.R.P. No.10/2015 in C.P No.1700/2011, C.M.A.No.5968/2015 in C.R.P.No.10/2015. C.R.P.No.11/2015 in C.P. No.1701/2011 & C.M.A.No.5969/ 2015 in C.R.P.11/2015] which have been decided by the Hon'ble Apex Court on 30.09.2020 by upholding the principles already laid down in the aforementioned case and granted only first right of refusal to the illegal occupants or encroachers after holding auction of the said land. The operative part of the order dated 30.09.2020 is as under:-

“At the very outset, learned counsel for the review petitioner states that these review petitions be disposed of if the land, subject matter of the controversy is put to auction under the relevant laws. According to him, since the petitioner has been conferred land, which has been annulled by this Court, and if at all the same is put to auction under the relevant law, the petitioner be given first right of refusal to the highest bid. Such offer is not opposed by the learned Additional Advocate General as also the learned counsel for the respondent. It is expected that the auction will be carried out in a most transparent manner with due publicity preferably within a period of six months. Accordingly, both the review petitions are disposed of in the above terms. As a natural corollary, C.M.As also stand disposed of.”

The above quoted verdicts of the Hon'ble August Court clearly set down the hallmark principle for disposal of evacuee land through unrestricted open auction and any deviation whereof shall be tantamount to the non-compliance of law which renders the very order of the authority as illegal and void in nature. In addition to the above the Hon'ble Supreme Court of Pakistan in its decision dated 02.01.2015 rendered in

C.P. No.709-L/2009 titled Member (Judicial-V), Board of Revenue/Chief Settlement Commissioner, Punjab & 2 Others Vs. Sagheer Muhammad Khan & Others, has conclusively set down a sacrosanct principle for disposal of public assets that the evacuee property which is also a public asset can only be disposed of through unrestricted and transparent open auction. The relevant portion thereof is reproduced as under:-

“7. Considering the above, we are clear firstly that the conclusion arrived at by the learned Single Bench in para 9 of the impugned judgment, as reproduced above is incorrect and the reliance on the case of Muhammad Hussain (supra) is also misplaced. Secondly, it is evident that as of date, the respondents can have no claim on the property in question. According to the current law and arrangements put in place by the Province subsequent to the Repeal Act the property will have to be disposed of through open public auction so that the assets vested in the Province and ultimately in the people of the Province are duly protected. This shall not prevent the Province from proceeding against the respondents or others both for recovery of compensation for occupation and use of the property and for any other action civil or criminal in this case. This petition is converted into appeal and is allowed in the above terms.”

(emphasis supplied)

7.....

8. The land in question is admittedly a public property and the Courts of law are custodian of the public properties, public interest and while dealing with matters related to such properties and interests, it is the duty of the courts to be very careful and cautious and assure itself to the extent of certainty that no foul/mischief is being played with the state assets. An extraordinary obligation is placed upon the constitutional courts to keep abreast itself with law and facts of the case and when certain material facts unearthed before it then the matter should be decided as per law even without being influenced by respective pleadings of the parties. In this regard, reliance is placed on a judgment cited as Provincial Government through Collector, Kohat and another Versus Shabbir

Hussain (PLD 2005 SC 337), wherein the Hon'ble Apex Court of the country has held as under:-

12. Likewise, the learned Presiding Officers are also required to exercise caution when they are dealing with matters relating to public property and public interest of which the Courts of law are the final custodians. It is true that we have never leaned in favour of giving of preferential treatment to the Government departments or agencies but then we are equally obliged, while granting relief, to ensure that public interest is not permitted to be jeopardized and public property is not allowed to be squandered through mere collusion of some representative of a Government agency”.

(emphasis supplied)

9. Moreover in the plethora of the hallmark dicta of the Hon'ble Apex Court of the country it is successively held that the state assets must be disposed of in fair transparent, universally recognized modus operandi of public auction, thus all the organs of the state are placed under mandatory obligation to comply with the orders of the Hon'ble Supreme Court of Pakistan as enshrined in Article 189 of the Constitution of the Islamic Republic of Pakistan and any deviation whereof that would indeed be nullity void ab initio in the eyes of law. Reliance in this regard is placed on the cases cited as Muhammad Sharif Vs. Settlement Commissioner and others (2007 SCMR 707), Iffat Jabeen Vs. District Education Officer (M.E.E), Lahore and another (2011 SCMR 437) and Dr. Iqrar Ahmad Khan Vs. Dr. Muhammad Ashraf and others (2021 SCMR 1509).

As such it is crystal clear from the aforementioned discussion that the Notified Officer / Chief Settlement Commissioner has no jurisdiction to sell the evacuee land through private treaty and the only mode for disposal of the state assets is to put the same to unrestricted transparent open public auction but the Chief Settlement Commissioner while deciding the application in violation of above consistent law allowed the appellant to purchase the land on market price which in itself is a kind of private treaty, thus these findings being contrary to law are liable to be set aside.”

7. Further, the petitioners filed application on 21.02.2001 for the purchase of the evacuee land measuring 93-Kanals 04-Marlas to the Chief Settlement

Commissioner/Notified Officer, Punjab, whereas the Evacuee Property and Displaced Persons Laws (Repeal) (Amendment) Act, 2022 (XXI of 2022) has been promulgated and Section 3 thereof deals with the transfer of the evacuee properties. For ready reference, Section 3 of the Act *ibid* is reproduced as under:

“3. Transfer of property.– All properties, both urban and rural, including agricultural land, other than such properties attached to charitable, religious or educational trusts or institutions, whether occupied or un-occupied, which may be available for disposal immediately before the repeal of the aforesaid Acts and Regulations or which may become available for disposal after such repeal as a result of cancellation of any fraudulent allotment shall stand transferred to the Government for utilization for public purposes.”

(emphasis supplied)

After the promulgation of aforesaid enactment, all the evacuee properties stood transferred to the Provincial government for its utilization for public purposes and same went out from the jurisdiction of the Notified Officer, Chief Settlement Commissioner or the Full Board to decide *qua* its permanent disposal in any manner whatsoever, rather it is only the Provincial Government which has a limited jurisdiction to utilize such land only for public purpose. The term ‘Public Purpose’ has been defined in Black’s Law Dictionary (5th Edition) as under:-

“A public purpose or public business has for its objective the promotion of the public health, safety, morals, general welfare, security, prosperity and contentment of all the inhabitants or residents within a given political division, as,

for example, a State, the sovereign powers of which are exercised to promote such public purpose or public business.”

8. Learned counsel for the petitioners has not pointed out any illegality or material irregularity in the impugned order passed by the Member (Judicial-V), Board of Revenue /Chief Settlement Commissioner/ Administrator (Residual Properties)/Notified Officer, Punjab and has also not identified any jurisdictional defect calling for interference by this Court.

9. In nutshell, this Writ Petition is **dismissed** being devoid of any force.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for reporting.

JUDGE